

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index No.
Date purchased

RYAN BENN,

Plaintiff designates New York
County as the place of trial,

Plaintiff,

The basis of venue is
County in which cause of action arose

- against -

SUMMONS

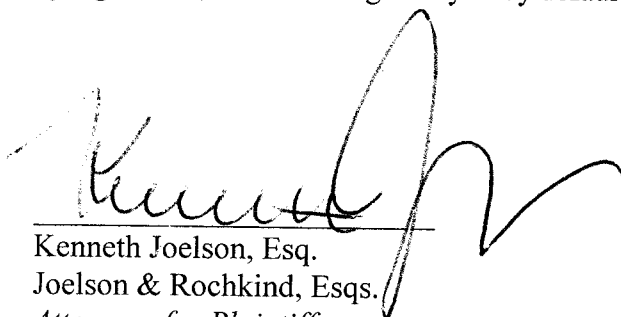
THE CITY OF NEW YORK, POLICE LIEUTENANT
HUGH MACKENZIE and 2272 FOOD CORP.,

Defendants.

To the above named Defendants

You are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorneys within **20** days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
December 21, 2012



Kenneth Joelson, Esq.
Joelson & Rochkind, Esqs.
Attorneys for Plaintiff
149 West 72nd Street
New York, New York 10023
(212) 873-7063

*Defendants' Address: NYC - 100 Church Street, New York, New York
Lt. Mackenzie - 25th Precinct, 120 East 119th Street, New York, New York
2272 Food Corp. - 2272 1st Avenue, New York, New York 10035*

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
RYAN BENN,

Plaintiff,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK, POLICE LIEUTENANT
HUGH MACKENZIE and 2272 FOOD CORP.,

Defendants.
-----X

Plaintiff, Ryan Benn, complaining of defendants, by his attorneys, Joelson & Rochkind, Esqs., respectfully shows to this Court and alleges:

FIRST: At all times hereinafter mentioned, defendant, The City of New York, was a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

SECOND: At all times hereinafter mentioned, defendant, 2272 Food Corp., was a domestic business corporation duly organized and existing under and by virtue of the laws of the State of New York.

THIRD: At all times hereinafter mentioned, defendant, 2272 Food Corp., was the owner of a business located at 2272 First Avenue in the County, City and State of New York.

FOURTH: At all times hereinafter mentioned, defendant, 2272 Food Corp., operated, maintained, managed and controlled the aforesaid business located at 2272 First Avenue, in the County, City and State of New York.

FIFTH: At all times hereinafter mentioned, defendant, 2272 Food Corp., employed certain individuals to work upon its premises.

SIXTH: At all times hereinafter mentioned, defendant, The City of New York, employed certain police officers including defendant, Police Lieutenant Hugh Mackenzie.

SEVENTH: More than thirty (30) days have elapsed since service of a Notice of Claim and adjustment or payment thereof has been neglected or refused.

EIGHTH: This action has been commenced within one year and ninety days after the happening of the events upon which these claims are based.

AS AND FOR A FIRST CAUSE OF ACTION

NINTH: On or about the 17th day of February, 2012, in the vicinity of the aforesaid premises located at 2272 First Avenue, in the County, City and State of New York, without just cause or provocation, certain members and employees of the New York City Police Department including defendant, Police Lieutenant Hugh Mackenzie, maliciously assaulted, attacked, beat, struck, maced, pushed and shoved the plaintiff, Ryan Benn, thereby causing severe injuries to plaintiff as are hereinafter mentioned.

TENTH: That at the time of the aforesaid acts, the aforesaid members and employees of the New York City Police Department including defendant, Police Lieutenant Hugh Mackenzie, were acting within the scope of their duties while serving as police officers employed by the defendant, The City of New York.

ELEVENTH: That as a result of the aforesaid incident, plaintiff, Ryan Benn, was caused to sustain serious permanent and temporary personal injuries and was rendered sick sore, lame and disabled.

TWELFTH: That such acts committed by defendant, its agents and employees, constituted intentional, wanton, reckless and malicious conduct.

THIRTEENTH: That the amount of damages sought exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION

FOURTEENTH: Plaintiff repeats, realleges and reiterates each and every allegation contained in paragraphs "FIRST" through "THIRTEENTH" as if set forth herein at length.

FIFTEENTH: That on or about the 17th day of February, 2012, while plaintiff, Ryan Benn, was lawfully within the aforesaid premises located at 2272 First Avenue, in the County, City and State of New York, he was handcuffed, detained, arrested and taken into custody by certain employees of the New York City Police Department, without just cause, reason or provocation and thereafter held in custody.

SIXTEENTH: That at the time said arrest and detention of plaintiff, the aforesaid members and employees of the New York City Police Department were acting in their capacity as police officers employed by the New York City Police Department and defendant, The City of New York.

SEVENTEENTH: That said arrest and detention was unjust, improperly investigated and without authority of law.

EIGHTEENTH: That said arrest was at least partially based on statements and accusations made to the police by an employee of defendant, 2272 Food Corp., while he was acting in his capacity as an employee of defendant, 2272 Food Corp.

NINETEENTH: That said arrest and detention of the plaintiff constituted intentional, wanton, careless, reckless and malicious conduct on the part of defendants.

TWENTIETH: That as a result of the aforesaid false arrest and illegal detention, plaintiff's health and earning capacity were impaired, he was caused to suffer great mental distress and his

reputation and character were injured.

TWENTY-FIRST: That the amount of damages sought exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

AS AND FOR A THIRD CAUSE OF ACTION

TWENTY-SECOND: Plaintiff repeats, realleges and reiterates each and every allegation contained in paragraphs "FIRST" through "TWENTY-FIRST" as if set forth herein at length.

TWENTY-THIRD: That subsequent to his arrest and detention, plaintiff, Ryan Benn, was arraigned in New York County Criminal Court and prosecuted thereafter for the crimes of criminal trespass in the third degree and resisting arrest under Criminal Court docket number 2012NY014636.

TWENTY-FOURTH: That said prosecution was caused by the unjust, illegal and malicious acts of defendants, their agents and employees.

TWENTY-FIFTH: That on or about the 20th day of December, 2012, the aforesaid charges were dismissed in Criminal Court, New York County, Part B.

TWENTY-SIXTH: That as a result of said unjust and malicious prosecution, the plaintiff's health was impaired, he suffered great and violent shock to his nervous system causing great mental distress, anxiety, humiliation and embarrassment and his reputation and character were injured.

TWENTY-SEVENTH: That said prosecution of the plaintiff, Ryan Benn, constituted intentional, wanton, reckless and malicious conduct on the part of defendants, their agents and employees.

TWENTY-EIGHTH: That the amount of damages sought exceed the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A FOURTH CAUSE OF ACTION

TWENTY-NINTH: Plaintiff repeats, realleges and reiterates each and every allegation contained in paragraphs "FIRST" through "TWENTY-EIGHTH" as if set forth herein at length.

THIRTIETH: As a result of the foregoing acts of the defendants, their agents and employees, plaintiff has been deprived of his civil rights, privileges and immunities as secured pursuant to the United States and New York State Constitutions and other laws.

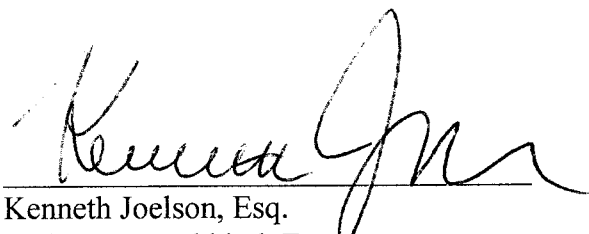
THIRTY-FIRST: That said deprivation of plaintiff's civil rights constituted intentional, wanton, reckless and malicious conduct on the part of defendants, their agents and employees.

THIRTY-SECOND: That as a result of the aforesaid deprivation of rights, plaintiff's health was impaired, he suffered great and violent shock to his nervous system causing great mental distress, anxiety, depression, humiliation and embarrassment and his reputation and character were injured.

THIRTY-THIRD: That the amounts of damages sought exceed the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

WHEREFORE, plaintiff demands judgement against defendants on the First Cause of Action, Second Cause of Action, Third Cause of Action and Fourth Cause of Action, together with punitive damages, interest, costs and disbursements.

Dated: New York, New York
December 21, 2012



Kenneth Joelson, Esq.

Joelson & Rochkind, Esqs.
Attorneys for Plaintiff
149 West 72nd Street
New York, New York 10023
(212) 873-7063

SS:

, the undersigned, am an attorney admitted to practice in the courts of New York, and

☐ certify that the annexed
Attorney's has been compared by me with the original and found to be a true and complete copy thereof.
Certification

☐ say that: I am the attorney of record, or of counsel with the attorney(s) of record, for
Attorney's I have read the annexed
Verification

☐ know the contents thereof and the same are true to my knowledge, except those matters therein which are stated to be alleged on information
and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon
Affirmation knowledge, is based upon the following.

The reason I make this affirmation instead of is

affirm that the foregoing statements are true under penalties of perjury.
dated:

(Print signer's name below signature)

STATE OF NEW YORK, COUNTY OF NEW YORK
Ryan Benn

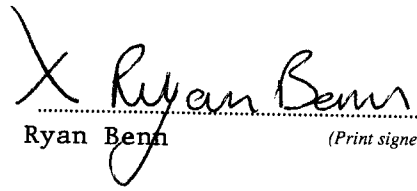
SS:

being sworn says: I am the Plaintiff

☒ in the action herein; I have read the annexed Summons and Verified Complaint
Individual know the contents thereof and the same are true to my knowledge, except those matters therein which are stated to be alleged on
Verification information and belief, and as to those matters I believe them to be true.
the of

☐ a corporation, one of the parties to the action; I have read the annexed
Corporate know the contents thereof and the same are true to my knowledge, except those matters therein which are stated to be alleged on
Verification information and belief, and as to those matters I believe them to be true.
My belief, as to those matters therein not stated upon knowledge, is based upon the following:

worn to before me on DECEMBER 21, 20 12


Ryan Benn
(Print signer's name below signature)

KENNETH JOELSON
Notary Public State of New York
No. 4624342
Qualified in Nassau County
Commission Expires March 30, 2014

STATE OF NEW YORK, COUNTY OF

SS:

being sworn says: I am not a party to the action, am over 18 years of

age and reside at
On , 20 , I served a true copy of the annexed
in the following manner:

☐ by mailing the same in a sealed envelope, with postage prepaid thereon, in a post-office or official depository of the U.S. Postal Service,
Service addressed to the address of the addressee(s) indicated below, which has been designated for service by the addressee(s) or, if no such address
by Mail has been designated, is the last-known address of the addressee(s):

☐ by delivering the same personally to the persons at the address indicated below:
Personal Service

☐ by transmitting the same to the attorney by facsimile transmission to the facsimile telephone number designated by the attorney for that
purpose. In doing so, I received a signal from the equipment of the attorney served indicating that the transmission was received,
and mailed a copy of same to that attorney, in a sealed envelope, with postage prepaid thereon, in a post office or official depository of the
U.S. Postal Service, addressed to the address of the addressee(s) as indicated below, which has been designated for service by the
addressee(s) or, if no such address has been designated, is the last-known address of the addressee(s):
Service by Facsimile

☐ by transmitting the same to the attorney by electronic means upon the party's written consent. In doing so, I indicated in the subject matter
heading that the matter being transmitted electronically is related to a court proceeding:
Service by Electronic Means

☐ by depositing the same with an overnight delivery service in a wrapper properly addressed, the address having been designated by the
addressee(s) for that purpose or, if none is designated, to the last-known address of addressee(s). Said delivery was made prior to the latest
time designated by the overnight delivery service for overnight delivery. The address and delivery service are indicated below:
Overnight Delivery Service

Sworn to before me on , 20

(Print signer's name below signature)

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

RYAN BENN,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE LIEUTENANT
HUGH MACKENZIE and 2272 FOOD CORP.,

Defendants.

SUMMONS and VERIFIED COMPLAINT

JOELSON & ROCHKIND

Attorneys for Plaintiff

149 WEST 72nd STREET
NEW YORK, N.Y. 10023
(212) 873-7063

Pursuant to 22 NYCRR 130-1.1-a, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, (1) the contentions contained in the annexed document are not frivolous and that (2) if the annexed document is an initiating pleading, (i) the matter was not obtained through illegal conduct, or that if it was, the attorney or other persons responsible for the illegal conduct are not participating in the matter or sharing in any fee earned therefrom and that (ii) if the matter involves potential claims for personal injury or wrongful death, the matter was not obtained in violation of 22 NYCRR 1200.41-a.

Dated: December 21, 2012

Signature

Print Signer's Name Kenneth Joelson, Esq.

Service of a copy of the within

is hereby admitted.

Dated:

Attorney(s) for

PLEASE TAKE NOTICE

Check Applicable Box



NOTICE OF
ENTRY

that the within is a (certified) true copy of a
entered in the office of the clerk of the within-named Court on

20



NOTICE OF
SETTLEMENT

that an Order of which the within is a true copy will be presented for settlement to the
Hon. _____, one of the judges of the within-named Court,
at _____
on _____ 20____, at _____ M.

Dated:

JOELSON & ROCHKIND

Attorneys for

To:

149 WEST 72nd STREET
NEW YORK, N.Y. 10023

Attorney(s) for